

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

----- X
FRANK DeMARTINO,

Plaintiff,

-against-

THE CITY OF NEW YORK, a municipal entity; and
New York City Police Officer JOHN ZIZZO (Shield
No. 22964) and New York City Narcotics Detective
DANIEL CRUZ (Shield No. 3302), in their
individual capacities,

Defendants.
----- X

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Index No.

Plaintiff FRANK DeMARTINO, by his attorneys, Beldock Levine & Hoffman LLP, as
and for his complaint against the defendants alleges as follows:

JURISDICTION

1. This is a civil rights action brought pursuant to 42 U.S.C. § 1983 for violations of plaintiff's rights secured by the Fourth and Fourteenth Amendments to the United States Constitution; and for violations of plaintiff's rights under New York State common law.

2. The amount of damages sought exceeds the jurisdiction of all lower courts which would otherwise have jurisdiction.

VENUE

3. Venue is proper in Queens County pursuant to C.P.L.R. § 503(3) as this is an action against the City of New York and its officers and Queens County is where the events giving rise to this action took place.

JURY DEMAND

4. Plaintiff demands a trial by jury in this action on each and every one of his claims for which jury trial is legally available.

THE PARTIES

7. Plaintiff FRANK DeMARTINO is a citizen of the United States and the State of New York, Queens County and at all times relevant to this complaint resided in Queens County, City and State of New York

8. Defendant JOHN ZIZZO (Shield No. 22964) is a New York City Police Department Police Officer.

9. Upon information and belief Defendant DANIEL CRUZ (Shield No. 3302) was a New York City Police Department Police Officer at all times relevant herein and was later promoted to a Narcotics Detective.

10. At all times relevant herein, defendants have acted under color of state law in the course and scope of their duties and/or functions as agents, employees, and officers of The City of New York and/or the New York Police Department (“the NYPD”) in engaging in the conduct described herein.

11. The City is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, and does maintain the NYPD, which acts as its agent in the area of law enforcement. At all times relevant herein, defendants have acted for and on behalf of the City and/or the NYPD with the power and authority vested in them as officers, agents, and employees of the CITY and/or the NYPD, and incidental to the lawful pursuit of their duties as officers, employees, and agents of the City and/or the NYPD.

12. At the times relevant herein, defendants violated clearly established rights and standards under the Fourth and Fourteenth Amendments to the United States Constitution, of which a reasonable police officer in their respective circumstances would have known.

FACTS

13. Plaintiff owns and operates several construction companies.

14. As part of his business, Plaintiff subleased space in a commercial and industrial warehouse located at 138-01 Springfield Boulevard, Queens, New York 11413. The warehouse was owned by SNC Properties, LLC.

15. In addition to conducting his business from that location, Plaintiff stored hundreds of thousands of dollars in heavy construction equipment there.

16. In 2010, SNC Properties evicted the company that Plaintiff had leased the space on Springfield Boulevard. SNC Properties then instituted an action in state court to evict Plaintiff from the premises.

17. In September 2011, in connection with that state court action, Connie Lomonaco, a managing member of SNC Properties, submitted an affidavit that falsely stated that SNC Properties had “disposed of all of [Plaintiff’s] belongings which were on our property.”

18. The attorney for SNC Properties, Paul Golden, also submitted an affidavit that stated “[m]y clients have now disposed of all of [Plaintiff’s] property pursuant to that court order, and the defendants cannot retrieve that property at this point.”

19. SNC Properties had not “disposed” of Plaintiff’s property, but had instead appropriated the heavy construction equipment that Plaintiff stored there.

20. The owners and operators of SNC Properties, Connie and Stenis Lomonaco, also own and operate Heavy Construction Co., Inc.

21. SNC Properties, by and through Connie and Stenis Lomonaco, misappropriated Plaintiff’s construction equipment for use by Heavy Construction Co.

22. Heavy Construction Co. conducts business from 138-13 Springfield Boulevard, Queens, New York 11413, the building adjacent to the building where Plaintiff was subleasing.

23. On several occasions in 2012 — after Connie Lomonaco submitted an affidavit in the state court action that Plaintiff's property had been "disposed of" — Plaintiff observed his equipment still in the yard at 138-01 Springfield Boulevard.

24. Plaintiff also observed on several occasions Heavy Construction Co. using his equipment while doing work on public improvement projects throughout New York City.

25. The morning of July 12, 2012, Plaintiff observed workers from Heavy Construction Co. leave the premises at 138-01 Springfield Boulevard towing one of his pieces of equipment, an Atlas Capco Air Compressor.

26. Plaintiff followed them to a public sidewalk project at or about 72-11 35th Avenue in the Jackson Heights section of Queens.

27. Plaintiff had a camera with him and took pictures of the construction site and Heavy Construction Co. workers using his Atlas Capco Air Compressor as well as other pieces of equipment that belonged to him.

28. At or about 9:45 a.m., Plaintiff called 911 for assistance in recovering his misappropriated equipment.

29. Two NYPD officers, Defendants John Zizzo and Daniel Cruz, arrived and spoke with Plaintiff.

30. Plaintiff explained to the officers that the equipment belonged to him and he wanted it returned.

31. At some point, Stenis Lomonaco had arrived at the site.

32. Defendant Zizzo spoke with Stenis Lomonaco and spoke on the phone with attorney Paul Golden.

33. Meanwhile, Plaintiff was standing near and then sitting on the hitch of the air compressor.

34. The air compressor was positioned on the street, adjacent to the sidewalk, between parked cars.

35. The construction site was not enclosed, but was openly approachable from the street.

36. Without reason or provocation, Defendant Cruz approached Plaintiff and said “stop resisting arrest” and proceeded to punch, kick, and throw Plaintiff to the ground.

37. Plaintiff was not resisting before or after Defendant Cruz attacked him.

38. While Plaintiff was on the ground, Defendants Zizzo and Cruz kicked and punched him.

39. When Plaintiff was handcuffed on the ground, Defendant Zizzo sat or knelt on Plaintiff’s diaphragm causing him to have trouble breathing.

40. While he was still on the ground, Plaintiff asked the officers to retrieve his expensive eye glasses that had flown off when he was thrown to the ground.

41. Defendant Zizzo intentionally stepped on the glasses and broke them before he collected them.

42. Plaintiff was brought to a police car and taken to the 115th Precinct.

43. At the precinct, Plaintiff requested medical attention for the injuries he sustained when Defendants Zizzo and Cruz assaulted him.

44. Plaintiff was taken to Elmhurst Hospital Center where he received treatment.

45. Later in the day on July 12, 2012, Plaintiff was taken to Central Booking, brought before a judge to be arraigned, and was charged with resisting arrest and criminal trespass in the third degree.

46. Defendant Zizzo signed the Criminal Court Complaint falsely charging Plaintiff with resisting arrest and criminal trespass in the third degree.

47. Plaintiff was released on his own recognizance.

48. In order to defend himself from the false charges brought against him, Plaintiff was forced to hire attorneys and appear multiples times in Queens County Criminal Court over a two year period.

49. Defendant Zizzo testified falsely at a pretrial hearing held on July 31, 2013.

50. Plaintiff was then forced to stand trial, which spanned nearly two weeks.

51. Defendants Zizzo and Cruz both testified falsely at the trial.

52. On May 7, 2014, a jury acquitted Plaintiff on all counts.

53. As a result of the foregoing, Plaintiff sustained physical injuries, pain and suffering, emotional and psychological distress, and humiliation.

FIRST CAUSE OF ACTION
42 U.S.C. § 1983 (Fourth and Fourteenth Amendments)

54. Plaintiff realleges and incorporates by reference each and every allegation set forth in the foregoing paragraphs as if fully set forth herein.

55. In committing the acts and omissions complained of herein, Defendants acted under color of state law to deprive Plaintiff of his rights under the Fourth and Fourteenth Amendments to the United States Constitution, including:

- a. the right to be free from unreasonable search and seizure of his person;
- b. the right to be free from arrest without probable cause;
- c. the right to be free from excessive force;

- d. the right to be free from false imprisonment, that being wrongful detention without good faith, reasonable suspicion, or legal justification, and of which detention plaintiff was aware and to which he did not consent;
- e. the right to be free from the lodging of false criminal charges;
- f. the right to be free from malicious prosecution, that being prosecution without probable cause that is instituted with malice and that ultimately terminated in plaintiff's favor;
- g. the right to be free from abuse of process; the right to be free from deprivation of liberty and property without due process of law.

56. As a direct and proximate result of Defendants' deprivation of Plaintiff's constitutional rights, Plaintiff suffered the injuries and damages set forth above.

57. The Defendants' unlawful conduct was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed.

SECOND CAUSE OF ACTION
42 U.S.C. § 1983 – New York City's Municipal Liability

58. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

59. At all times relevant herein, the City, acting through the NYPD and the individual defendants, has implemented, enforced, encouraged, and/or sanctioned policies, practices, and/or customs which were a direct and proximate cause of the unconstitutional conduct alleged herein.

60. Defendant City implemented, enforced, encouraged, sanctioned, and/or ratified policies, practices, and/or customs of failing to adequately train, supervise, or discipline NYPD officers in the appropriate use of force, proper investigation of incidents involving the use of force, and providing truthful and accurate reports regarding use of force incidents.

61. Defendant CRUZ has a history of police misconduct, including conduct involving excessive force.

62. Defendant CRUZ has been named as a defendant in at least three lawsuits alleging that he used excessive force: [list cases]

63. At least one of these lawsuits was filed and settled before CRUZ used excessive force on the plaintiff in this case.

64. Upon information and belief, defendant CRUZ has never been disciplined for his use of excessive force.

65. In fact, with deliberate indifference to the allegations of defendant CRUZ's prior misconduct, the New York City Police Department promoted him to Narcotics Detective.

66. Defendant City and the New York City Police Department's deliberate indifference to allegations of defendant CRUZ's misconduct caused Plaintiff to be subjected to excessive and unnecessary force and malicious prosecution in violation of the rights guaranteed to every citizen of the United States by the Fourth and Fourteenth Amendment to the United States Constitution and 42 U.S.C. § 1983.

67. As a result of the foregoing, plaintiff suffered the injuries and damages alleged herein.

THIRD CAUSE OF ACTION
State Law Malicious Prosecution

68. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

69. Defendants, through the foregoing acts, maliciously initiated and continued a criminal proceeding against plaintiff, which ended in his favor, without probable cause to believe plaintiff was guilty of the crimes charged.

70. Defendants committed the foregoing acts intentionally, willfully, and maliciously, and are therefore liable for punitive damages.

FOURTH CAUSE OF ACTION
Intentional Infliction of Emotional Distress

71. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

72. Defendants through the foregoing acts, did commit extreme and outrageous conduct and thereby intentionally, and/or recklessly caused plaintiff to experience severe mental and emotional distress, pain, suffering, and damage to name and reputation.

73. Defendants committed the foregoing acts intentionally, willfully, and with malicious disregard for plaintiff's rights and are therefore liable for punitive damages.

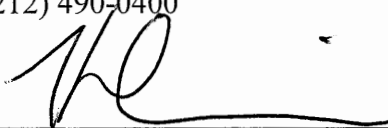
DEMAND FOR RELIEF

WHEREFORE, Plaintiff demands the following relief against Defendants, jointly and severally:

- (a) compensatory damages in an amount just and reasonable and in conformity with the evidence at trial;
- (b) punitive damages from Defendants to the extent allowable by law;
- (c) attorney's fees;
- (d) the costs and disbursements of this action;
- (e) interest; and
- (f) such other and further relief as this Court deems just and proper.

Dated: New York, NY
May 4, 2015

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(212) 490-0400



Joshua S. Moskowitz
Keith M. Szczepanski
Attorneys for Plaintiff Frank DeMartino

VERIFICATION

STATE OF NEW YORK)

: SS.:

COUNTY OF NEW YORK)

Frank DeMartino, being duly sworn, deposes and says: I am the plaintiff in the within action; I have read the foregoing Verified Complaint and know the contents thereof as they relate to me; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true.



Frank DeMartino

Sworn to before me this
4th day of May, 2015



Notary Public

JOSHUA S. MOSKOVITZ
Notary Public, State of New York
No. 02MO6306210
Qualified in Kings County
Commission Expires June 23, 2018